

The Indian Forest Service (Appointment by Competitive Examination) Regulations, 1967

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The Indian Forest Service (Appointment by Competitive Examination) Regulations, 1967

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The Indian Forest Service (Appointment by Competitive Examination) Regulations, 1967

Rule THE-INDIAN-Forest-SERVICE-APPOINTMENT-BY-COMPETITIVE-EXAMINATION-REGULATIONS-1967 of 1967

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The Indian Forest Service (Appointment by Competitive Examination) Regulations, 1967

In pursuance of Rule 7 of the Indian Forest Service (Recruitment) Rules, 1966, the Central Government, in consultation with the State Governments and the Union Public Service Commission, hereby makes the following regulations, namely :

1.

Short title.

- These regulations may be called the Indian Forest Service (Appointment by Competitive Examination) Regulations, 1967.

2.

Definitions.

(1)

In these regulations, unless the context otherwise requires,-

(a)

'available vacancies' means the vacancies in the Service which, as determined by the Central Government under the provisions of sub-rule (3) of rule 4 of the Recruitment Rules, are to be filled on the results of an examination;

(b)

'examination' means a competitive examination for recruitment to the Service held under sub-rule (1) of rule 7 of the Recruitment Rules;

(c)

'list' means the list of candidates prepared under regulation 7;

(d)

'Recruitment Rules' means the Indian Forest Service (Recruitment) Rules, 1966.

(2)

All other words and expressions used but not defined in these regulations shall have the meanings respectively assigned to them in the Recruitment Rules.

3.

Holding of examination.

- The examination shall be conducted by the commission in the manner notified by the Central Government from time to time.

(2)

The dates on which and the places at which the examination shall be held shall be fixed by the Commission.

4.

Conditions of eligibility.

- In order to be eligible to compete at the examination, a candidate must satisfy the following conditions, namely :

(1)

Nationality. - He must be a citizen of India or must belong to such categories of persons as may from time to time be notified in this behalf by the Central Government.

(2)

[Age. - He must have attained the age of 21, and not attained the age of 30 on the first day of July of the year in which the examination is held]

[Substituted by G.S.R. 676 (E), dated 13th November, 1998 (w.e.f. 13-11-1998).]

;

Provided that the upper age limit may be relaxed in respect of candidates belonging to the Scheduled Castes and the Scheduled Tribes and such other categories of persons as may from time to time be notified in this behalf by the Central Government by general or special orders to the extent and subject to the conditions notified in respect of each category :

Provided further that the upper age limit may be relaxed in respect of a person who was directly recruited to the gazetted cadre of the State Forest Service and had put in less than 4 years service, including 2 years training for diploma course in the Forest Research Institute and Colleges, Dehra Dum, on the 1st July, 1966, to such extent and for such periods as the Central Government may by order specify :

[Provided also that the upper age limit shall be raised to 31 years for the candidates appearing at the examination to be conducted by the Commission in 1990.]

[Substituted by G.S.R. 140 (E), dated 16th March, 1990.]

(3)

Educational qualification. - He must hold a Bachelor's degree with at least one of the subjects, namely, Botany, Chemistry, Forestry, Geology, Mathematics, Physics and Zoology, or a Bachelor's degree in Agriculture, or in [* * *]

[Omitted by M.H.A. Notification No. 4/70/68 (1)-A.I.S. (IV), dated 25th July, 1969.]

Engineering of any University incorporated by an Act of the Central or of the State Legislature in India or other educational institutions established by an Act of Parliament or declared to be deemed as Universities under Section 3 of the University Grants Commission Act, 1956 (

3 of 1956

), or a foreign University approved by the Central Government from time to time, or possess a qualification which has been recognised by the Central Government for the purposes of admission to the examination :

Provided that in exceptional cases the Commission may treat a candidate not possessing the qualifications prescribed herein as qualified if-

(a)

he has passed an examination conducted by any other institution of a standard which, in the opinion of the Commission justifies, has admission to the examination, or

(b)

he has taken one or more degrees by passing an examination in any one or more subjects aforesaid from a foreign university which is not approved by the Central Government.

Explanatory Memorandum

A degree in Forestry or Statistics has been included as one of the educational qualifications for admission to the Indian Forest Service examination to be conducted by the Union Public Service Commission in the year 1988. The 'Notice' for the ensuing examination has been issued on this basis by the Union Public Service Commission.

Correspondingly, the 'Rules' governing the conduct of the above examination have also been notified on the same basis, by the Ministry of Environment and Forests. The Gazette notifications of the 'Notice' and 'Rules' for the examination have been published in the Gazette on the 30th January, 1988.

2. The rules for the conduct of the Indian Forest Service examinations derive authority from the Indian Forest Service (Appointment by Competitive Examination) Regulations, 1967. To lend authority to the 'Notice' and the 'Rules' for the examination to be conducted in the year, 1988 it is necessary to amend the provisions of the statutory Regulations of 1967 appropriately.

3. In order to amend the Regulations of 1967, consultation with the 22 State Governments participating in the Indian Forest Service is necessary. The process of consultation with the State Governments, and arriving at a decision taking into account their opinions, which are mostly in affirmative, has just been completed.

4. In the above circumstances, it has been essential to give retrospective effect to the amendments to the Regulations of 1967.. It is certified that no person is likely to be adversely affected by this Notification being given retrospective effect.

[(3-A) Attempts at the examination. - Unless covered by any of the exceptions that may, from time to time, be notified by the Central Government in this behalf, [every candidate appearing at the examination after the 1st January, 1990, who is otherwise eligible, shall be permitted four attempts at the examination]

[Inserted by Notification No. 16071/2/82-AIS (IV), dated 12th December, 1983.]

.

(4)

Fees. - He must pay the fees prescribed by the Commission.

5.

Disqualification for admission.

- Any attempt on the part of a candidate to obtain support for his candidature by any means may be held by the Commission to disqualify him for admission to the examination.

6.

Decision of the Commission to be final.

- The decision of the Commission as to the eligibility or otherwise of a candidate for admission to the examination shall be final and no candidate to whom a certificate of admission has not been issued by the Commission shall be admitted to the examination.

7.

[List of candidates.

[Substituted by G.S.R. 808, dated 4th November, 1989.]

- List of successful candidates-

(1)

Subject to the provision of sub-regulation (2) the Commission shall forward to the Central Government a list arranged in order of merit of the candidates who have qualified by such standards as the Commission may determine.

(2)

The candidates, belonging to any of the Scheduled Castes or the Scheduled Tribes, may, to the extent of the number of vacancies reserved for the Scheduled Castes and the Scheduled Tribes, be recommended by the Commission by a relaxed standard, subject to the fitness of these candidates for selection to the Service :

Provided that the candidates, belonging to the Scheduled Castes and the Scheduled Tribes, who have been recommended by the Commission without resorting to the relaxed standard referred to in this sub-regulation, shall not be adjusted against the vacancies reserved for the Scheduled Castes and the Scheduled Tribes.]

8.

Appointment of candidates.

- Subject to the provisions of regulations 9, 10, 12 and 13, candidates will be considered for appointment to the available vacancies in the order in which their names appear in the list.

9.

Reservation for Scheduled Castes and Scheduled Tribes.

(1)

In pursuance of rule 7 of the Recruitment Rules [15 per cent and 7-½ per cent]

[Substituted by DP Notification No. 3/31/70-(ii)-AIS(IV), dated 26th April, 1971 (w.e.f. 8th May, 1971).]

of the available vacancies shall be reserved for candidates who are members of the Scheduled Castes and the Scheduled Tribes respectively.

(2)

In filling the vacancies reserved for candidates who are members of the Scheduled Castes and the Scheduled Tribes such candidates shall be considered for appointment in the order in which their names appear in the list.

(3)

[If sufficient number of candidates, who are members of the Scheduled Castes or the Scheduled Tribes, are not available for filling all the vacancies so reserved, the vacancies not so filled shall be treated as backlog vacancies and carried forward to the subsequent examinations until they are filled. The backlog vacancies shall be treated as a distinct group separate from the current vacancies reserved under sub-regulation (1), for candidates, who are members of the Scheduled Castes and the Scheduled Tribes.]

[Substituted by G.S.R. 808, dated 4th November, 1989.]

(4)

[and (5) [* * *]]

[Sub-regulations (4) and (5) omitted by G.S.R. 808, dated 4th November, 1989.]

10.

Disqualification for appointment.

- [(1) No person-

(a)

who has entered into or contracted a marriage with a person having a spouse living; or

(b)

who, having a spouse living has entered into or contracted a marriage with any person, shall be eligible for appointment to the Service :

Provided that the Central Government may, if satisfied that such marriage is permissible under the personal law applicable to such person and the other party to the marriage and there are other grounds for so doing exempt any person from the operation of this regulation.]

[Substituted by Notification No. 3/31 /70-(ii) AIS (iv), dated 26th April, 1971 (w.e.f. 8th May, 1971).]

(2)

[* * *]

[Omitted by DP & AR Notification No. 16021/1/75-A1S (III), dated 29th September, 1975 (w.e.f. 6th October, 1973).]

11.

[Disciplinary action.

[Substituted by DP & AR Notification No. 11028/1/77-AIS (I)-C, dated 29th March, 1978.]

- A candidate who is or has been declared by the Commission to be guilty of-

(i)

[obtaining support for his candidature by the following means, namely :

- (a)
offering illegal gratification to, or
- (b)
applying pressure on, or
- (c)
blackmailing, or threatening to blackmail, any person connected with the conduct of the examination, or;]
- (ii)
impersonating, or
- (iii)
procuring impersonation by any person, or
- (iv)
submitting fabricated documents or documents which have been tampered with, or
- (v)
making statements which are incorrect or false or suppressing material information, or
- (vi)
[resorting to the following means in connection with the candidature for the examination, namely :
[Substituted by G.S.R. 682, dated 9th September, 1989.]
- (a)
obtaining copy of question paper through improper means,
- (b)
finding out the particulars of the persons connected with secret work relating to the examination,
- (c)
influencing the examiners, or,
- (vii)
using unfair means during the examination, or]
- (viii)
[writing obscene matters or drawing obscene sketches in the scripts, or
[Substituted by G.S.R. 682, dated 9th September, 1989.]
- (ix)
misbehaving in the examination hall including tearing of the scripts, provoking fellow examinees to boycott examination, creating a disorderly scene and the like, or]
- (x)
harassing or doing bodily harm to the staff employed by the Commission for the conduct of their examinations; or
- (xi)
[violating any of the instructions issued to candidates alongwith their admission certificates permitting them to take the examination;
[Inserted by Notification No. 11028/1/83-AIS (1), dated 29th September, 1983.]
- (xii)
attempting to commit or as the case may be abetting the commission of all or any of the acts specified in the foregoing clauses;]
may, in addition to rendering himself liable to criminal prosecution, be liable-
- (a)
[to be disqualified by the commission from the examination for which he is a candidate; and/or
[Substituted by G.S.R. 682, dated 9th September, 1989.]
- (b)
to be debarred either permanently or for a specified period-
- (i)
by the Commission, from any examination or selection held by them;]
- (ii)
by the Central Government from any employment under them; and
- (c)

if he is already in service under Government to disciplinary action under the appropriate rules :

[Provided that no penalty under Clause (a) or Clause (b) as the case may be, shall be imposed except after-

(i)

giving the candidate an opportunity of making such representation in writing as he may wish to make in that behalf, and

(ii)

taking the representation, if any, submitted by the candidate, within the period allowed to him, into consideration.]

12.

Disqualification for appointment on medical grounds.

- No candidate shall be appointed to Service who, after such medical examination as the Central Government may prescribe, is not found to be in good mental or bodily health and free from any mental or physical defect likely to interfere with the discharge of the duties of the Service.

13.

Inclusion in the list confers no right of appointment.

- The inclusion of a candidate's name in the list confers no right to appointment unless the Central government is satisfied, after such inquiry as may be considered necessary, that [candidate having regard to his character and antecedents]

[Substituted by DP & AR Notification No. 32/1/74-AIS (II), dated 25th March, 1975.]

is suitable in all respects for appointment to the Service.

[Inserted by F. 11028/1/81-AIS (1), dated 25th January, 1982.]

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